

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 21-02

**YSN IMPORTS INC. d/b/a FLAME KING,
Complainant,**

v.

**FEIGE “PEGGY” OBERLANDER, U SHIPPERS GROUP INC., U SHIPPERS GROUP
MANAGEMENT CO., INC.,
Respondents.**

CONSENT MOTION FOR ENTRY OF PROTECTIVE ORDER

Complainant, YSN Imports Inc. d/b/a/ Flame King (“YSN”), and Respondents Feige “Peggy” Oberlander, U Shippers Group Inc., and U Shippers Group Management Co., Inc. (collectively “Respondents”) hereby move pursuant to Rule 201(i) of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.141(j) for entry of a protective order in connection with the above captioned proceeding. Issuance of a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary and/or commercially sensitive. A proposed protective order is attached for the Presiding Officer's consideration. The parties have jointly agreed to the terms of the Protective Order.

Dated: October 21, 2021

Respectfully submitted,

/s/ Brendan Collins

Brendan Collins
GKG LAW, P.C.
1055 Thomas Jefferson Street, NW
Suite 500
Washington, D.C. 20007
Tel.: 202-342-6793
Fax: 202-342-5299
bcollins@gkgklaw.com

Efrem Schwalb
Tal S. Benschar
KOFFSKY SCHWALB LLC
500 Seventh Avenue, 8th Floor
New York, New York 10018
Tel.: 646-553-1590
Fax.: 646-553-1591
eschwalb@koffskyschwalb.com
tbenschar@koffskyschwalb.com

*Counsel for Respondents Feige "Peggy"
Oberlander, U Shippers Group Inc., and U
Shippers Group Management Co., Inc.*

/s/ Vincent J. Foley

J. Michael Cavanaugh
HOLLAND & KNIGHT LLP
800 17th Street N.W., Suite 1100
Washington, DC 20006
Tel.: 202-828-5084
michael.cavanaugh@hklaw.com

Vincent J. Foley
HOLLAND & KNIGHT LLP
31 W. 52ND STREET
NEW YORK, NY 10019
Tel.: 212-513-3357
vincent.foley@hklaw.com

*Counsel for Complainant YSN d/b/a/ Flame
King*

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PROTECTIVE ORDER

Upon stipulation of Respondents Feige “Peggy” Oberlander, U Shippers Group Inc., and U Shippers Group Management Co., Inc. and Complainant YSN Imports Inc. d/b/a Flame King, the Parties through their respective attorneys, in order to expedite the exchange of certain confidential information, hereby submit the following proposed Protective Order to the Presiding Officer for due consideration and issuance:

IT IS HEREBY ORDERED THAT:

1. Except as otherwise ordered by the Presiding Officer, this Protective Order shall apply to all documents, answers to interrogatories, answers to requests for admissions, responses to requests for production of documents, deposition transcripts and exhibits, or other writings produced, given or filed in this action, and all information derived from any of the foregoing, that are designated as “Confidential” or “Highly Confidential” in accordance with the terms of this Order.

2. A party may designate as “Confidential” any information that is commercially sensitive and is not publicly known, including information provided by third parties to the producing party with the expectation that the information remain confidential. Confidential information subject to this Order shall be used solely for purposes of this litigation in accordance with provisions of this Order. Except with the prior written consent of the producing party, or with prior order of the Presiding Officer, Confidential information and any information derived therefrom may only be disclosed to:

- (a) counsel for the parties, including in-house counsel, and their legal, paralegal and clerical staff, and court-reporters engaged for the preparation of verbatim transcripts in this proceeding;
- (b) employees of the Federal Maritime Commission ("FMC");
- (c) experts retained by a party; and
- (d) any other person the parties have agreed to in advance in writing.

3. A party may designate as “Highly Confidential” any information that competitively sensitive or proprietary information or information that may raise antitrust issues. Highly Confidential Information includes shipper specific rate or cost data and member identification information. Highly Confidential information subject to this Order shall be used solely for purposes of this litigation in accordance with provisions of this Order. Except with the prior written consent of the producing party, or with prior order of the Presiding Officer, Highly Confidential information and any information derived therefrom may only be disclosed to an outside counsel or outside consultant to a party to these proceedings, or to an employee of such outside counsel or outside consultant

4. Information shall be designated by the producing party as confidential information in the following manner:

(a) in the case of information contained in a document, answer to interrogatory, answer to request for admission, response to request for production of documents or other writing, by stamping or otherwise marking, in such a manner as not to interfere with the legibility of the documents, the label "Confidential" or "Highly Confidential" on the face thereof at the time of production or copying;

(b) in the case of information contained or revealed in a deposition, whether in a question, answer or exhibit, by noting the designation on the record at the time of the deposition, or within ten business days after receipt of the deposition transcript. The transcript pages and any associated documents containing confidential information shall be bound separately and shall contain on each page, including the cover page, an appropriate notation identifying it as "Confidential" or "Highly Confidential."

(c) in the case of information contained or referenced in legal documents filed with the Commission, including, but not limited to, motions and legal memoranda in support, the parties shall seek to reach agreement regarding the release of information, failing such an agreement by stamping or otherwise marking, in such a manner as not to interfere with the legibility of the documents, the words "Confidential" or "Highly Confidential" on every page containing or referencing the confidential information. Such documents shall be filed with the Commission under seal.

A party that files a pleading in accordance with this paragraph shall promptly serve on the other party a proposed redacted copy of the pleading with the claimed protected information deleted and clearly marked "Proposed Redacted Copy" in the

upper right-hand corner of the first page. Within two business days after their receipt of the proposed redacted copy, the receiving party shall advise the party originating the pleading of any additional redactions it requires. The originating party shall promptly provide the other party with a copy of the pleading from which all information that any party has requested be redacted has been redacted and clearly marked “Agreed-Upon Redacted Copy – May be Made Public” in the upper right-hand corner of the page. During the two-day period, the proposed redacted copy shall be treated as protected. At the expiration of the two-day period, or when agreement is reached, the agreed-upon redacted copy shall be filed with the Commission by the originating party; and

(d) in the case of information exchanged prior to the entry of this Order, by procedures adopted by counsel for the parties, which procedures shall be consistent with those specified in subparts (a) – (c) of this paragraph 3.

5. It is the responsibility of all persons receiving materials containing confidential information that is properly marked to maintain such materials in a secure and appropriately identified manner.

6. It is the responsibility of counsel for each party to this action to ensure that those receiving confidential information properly marked pursuant to this Order have knowledge of the terms of this Order and agree to be bound by them. Prior to any such disclosure, recipients who are approved pursuant to paragraphs 2 (c) or (d) above must read and agree in writing to abide by the terms of this Order in the form of Exhibit A hereto. A copy of each recipient's written acknowledgment shall be kept by the party divulging the confidential information.

7. The designation of information as Confidential or Highly Confidential by the producing party shall not waive or affect in any way the right of the receiving party to contest the designation of confidentiality. The designation of confidentiality may be contested as follows:

(a) Counsel for the parties shall confer in a good faith effort to resolve any differences.

(b) Failing agreement of the parties, the party objecting to the designation of information as Confidential or Highly Confidential may file an appropriate motion with the Presiding Officer and shall (1) certify that he has sought in good faith to confer with opposing counsel and has been unable to resolve the dispute by agreement; and (2) identify by specific category or document number the information for which relief is sought.

(c) Within ten business days of receiving such a motion, the opposing party shall respond to the motion by showing with particularity with respect to each challenged item of Confidential or Highly Confidential information, the reasons why such information has been designated properly as Confidential or Highly Confidential.

(d) The burden of establishing that information is Confidential or Highly Confidential shall be on the party designating it as such.

(e) If a response is timely made as provided in subparagraph (c) above, until the motion is ruled upon by the Presiding Officer, the designation of confidentiality shall remain in full force and effect and the information shall continue to be accorded the treatment required by this Order.

8. If confidential information in the possession of the receiving party is subpoenaed by any court, administrative or legislative body, or any other person purporting to have authority

to subpoena such information, the party to whom the subpoena is directed shall give written notice of the subpoena (including the delivery of a copy thereof) to counsel for the party that produced the information or documents promptly after the receipt of the subpoena. In the event that the subpoena purports to require production of such Confidential or Highly Confidential information on less than 7 days' notice, the party to whom the subpoena is directed shall give immediate email notice of the receipt of such subpoena, and forthwith hand deliver a copy thereof, to the attorney for the producing party.

9. Within thirty days after the conclusion of this proceeding, including any appellate proceedings, all Confidential and Highly Confidential information (including copies and documents containing information derived therefrom) shall be destroyed or returned to the producing party, at the election of the receiving party, provided that documents previously filed with the FMC containing such information may either be destroyed or retained under seal and preserved as confidential in accordance with the terms of this Order.

10. The provisions of this Order shall survive and remain in full force and effect after the entry of final judgment, including any appellate proceedings, in this case.

SO ORDERED,

Dated: _____, 2021

EXHIBIT A

AGREEMENT TO ABIDE BY THE TERMS OF PROTECTIVE ORDER

I acknowledge that I have read the foregoing Protective Order and understand its contents, and I hereby agree to abide by its terms and conditions.

NAME: _____

DATE: _____

CERTIFICATE OF SERVICE

I hereby certify that that on this 21st day of October, 2021, I have served the foregoing document upon all parties of record by electronically mailing a copy to each such person.

/s/Brendan Collins

Brendan Collins